Temporary
3456

Executive Order

CONCERNING A SALE TO BE CONDUCTED BY THE ALIEN PROPERTY CUSTODIAN PURSUANT TO THE "TRADING WITH THE ENEMY ACT" and AMENDMENTS THEREOF.

By virtue of the authority vested in me by an "Act to define, regulate and punish trading with the enemy, and for other purposes," approved October 6, 1917, known as the "Trading with the Enemy Act," and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918 and prior fiscal years on account of war expenses and for other purposes," approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919 and prior fiscal years on account of war expenses and for other purposes," approved November 4, 1918, to make certain orders such as that herein contained, I hereby in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, without public or other advertisement, at such time and place and upon terms and conditions as to him, or to his authorized agent, may seem advisable, that certain property hereinafter described, now being held and administered by him as such Alien Property Custodian and heretofore upon requirement and demand conveyed, transferred, assigned and delivered to him as the property of Hamburg-Amerikanische Packetfahrt Actien Gesellschaft (Hamburg-American Line), a foreign corporation organized under and pursuant to the laws of the former Empire of Germany, which said corporation he did, after investigation, determine to be an enemy within the purview of said Act as amended, which property is described as follows:

Real Estate

All and singular the unexpired leasehold interest in and to all that certain wharf property situated on New York Bay in the Borough of Brooklyn, City of New York, County of Kings and State of New York, and known and described as follows, to wit:

Parcel A.—Pier at the foot of 33rd Street, Borough of Brooklyn, together with the right to use the shed thereon.

Parcel B.—The bulkhead extending one hundred and thirty-seven and one-half (137-½) feet north of the northerly side of said pier and the bulkhead extending one hundred and thirty-seven and one-half (137-½) feet south of the southerly side of said pier.

With the appurtenances and all the estate and rights thereunto belonging as defined and created in and by an indenture dated the 18th day of March, 1913 made by and between the City of New York acting by the Commissioner of Docks as party of the first part, and Hamburg-Amerikanische Packetfahrt Actien Gesellschaft (Hamburg-American Line) a foreign corporation organized under and pursuant to the laws of the former Empire of Germany, as party of the second part, wherein and whereby the said party of the first part leased and demised unto the said party of the second part for a term of years expiring on the 18th day of March, 1923, said property.

My reasons for the foregoing determination, order, rule and regulation are:

(a) That the said Indenture contains covenants by the said party of the second part restricting its assigning or subletting the demised premises without the written consent of the said Commissioner of Docks;

(b) That the property described is not customarily sold and cannot usually be sold to advantage either at public sale after public or other advertisement or at the place where said demised property, or the greater portion thereof, is situated;

(c) That unnecessary expense, delay and inconvenience may be avoided.

Done in the District of Columbia this eleventh day of May in the year of our Lord one thousand nine hundred and twenty-one, and of the independence of the United States the one hundred and forty-fifth.

WARREN G HARDING

THE WHITE HOUSE,
May 11, 1921.

[No. 3456.]